

Ramesh Chandra (Deceased) v. State of U.P. — bill-accuracy writ relegated to cl. 6.5(b)

Allahabad High Court · Division Bench · 7 March 2019 · Writ-C No. 2879 of 2019 · **Writ disposed without merits; petitioner permitted to complain under cl. 6.5(b).**

HEADNOTE

On a challenge to disconnection and a later inflated bill, the Allahabad High Court disposed of the writ without examining merits. Clause 6.5 of the U.P. Electricity Supply Code, 2005 governs bill-accuracy disputes; the consumer may file a complaint under clause 6.5(b). The Court noted the competent authority's seven-day mandate and directed that a complaint filed before respondent no. 2 be decided preferably within one month.

FACTUAL SUMMARY

The petitioner, shown as Ramesh Chandra (deceased) in the cause title, claimed an existing electricity connection. On 26 February 2017 the department disconnected supply, treating Rs 70,537 as outstanding against him. A bill dated 21 March 2017 then showed Rs 2,62,668 due. Aggrieved by what he described as incorrect billing, he applied to the respondents for a correct bill, but none was issued. The writ was listed several times and an amendment was allowed before the Division Bench took up the petition on 7 March 2019.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill accuracy — statutory complaint

HOLDING

Without examining the merits of the alleged incorrect bill and disconnection, the Court treated clause 6.5 of the U.P. Electricity Supply Code, 2005 as the forum for disputes on bill accuracy, noting the competent authority's mandate to decide a complaint within seven days, and permitted the petitioner to file a complaint under clause 6.5(b) within three weeks, to be decided preferably within one month if filed before respondent no. 2. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a challenge to disconnection and a later inflated bill, the Allahabad High Court disposed of the writ without examining merits. Clause 6.5 of the U.P. Electricity Supply Code, 2005 governs bill-accuracy disputes; the consumer may file a complaint under clause 6.5(b).. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 26 FEBRUARY 2017 DISCONNECTION AND THE 21 MARCH 2017 BILL OF RS 2,62,668 WERE CORRECT

Writ disposed without entering into the merits of the averments. ¶ 1